

CHAPTER 20

An Act to extend to ten years the period during which advances may be made to the National Research Development Corporation out of the Consolidated Fund and during which the Board of Trade may with the approval of the Treasury waive payments by way of interest on such advances; to make further provision as to the functions of the Corporation relating to research; and otherwise to amend the Development of Inventions Act, 1948. [18th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In section seven of the principal Act, (which empowers the Board of Trade with the consent of the Treasury to make advances up to five million pounds to the Corporation to defray capital expenditure, but limits the time within which such advances may be made to five years from the establishment of the Corporation), in subsection (1) for the words “five years” there shall be substituted the words “ten years”.

(2) In subsection (2) of section eight of the principal Act (which enables the Board of Trade with the approval of the Treasury to waive payments of interest due within five years from the establishment of the Corporation) for the words “five years” there shall be substituted the words “ten years”.

2.—(1) For the avoidance of doubt it is hereby declared that the activities which may be carried on by the Corporation under subsection (3) of section one of the principal Act (which empowers the Corporation to carry on activities ancillary to the Corporation's functions of securing the development and exploitation of inventions) include promoting and assisting research where in the opinion of the Corporation the results of the research are likely to further the development or exploitation of inventions to which the Corporation's said functions extend or to enhance the value of such inventions.

(2) Subject to the provisions of this section, the functions of the Corporation shall include promoting and assisting research for satisfying specific practical requirements brought to the knowledge of the Corporation where they are of opinion that the research is likely to lead to an invention.

(3) Subject to the provisions of this section, where it appears to the Corporation that a course of research has resulted in

any discovery such that the continuation of the research may lead to inventions of practical importance, the Corporation shall have power to assist the continuation of the research.

(4) The approval of the Lord President of the Council and the Board of Trade shall be requisite for the exercise by the Corporation of the functions conferred on them by the two last foregoing subsections.

(5) The approval of the Lord President of the Council and the Board of Trade may be given for the purposes of the last foregoing subsection either as respects any particular case or as respects any class of cases and subject to such conditions and limitations as they think fit.

Minor
amendments
of principal
Act.

3.—(1) In paragraph (ii) of the proviso to subsection (2) of section four of the principal Act (under which the Corporation does not require the approval of the Board of Trade to the giving of financial assistance to a person undertaking the development or exploitation of an invention if the aggregate of the assistance given to him in any year does not exceed five hundred pounds), for the words “five hundred pounds” there shall be substituted the words “one thousand pounds”.

(2) In subsection (3) of section ten of the principal Act (which requires auditors of the accounts of the Corporation to be members of one or more of certain specified bodies) for the references to the Society of Accountants in Edinburgh, the Institute of Accountants and Actuaries in Glasgow and the Society of Accountants in Aberdeen there shall be substituted a reference to the Institute of Chartered Accountants of Scotland.

(3) The persons qualified to be appointed under subsection (3) of section ten of the principal Act as auditors of the accounts of the Corporation shall include members of any body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948, by the Board of Trade.

11 & 12 Geo. 6.
c. 38.

Short title,
interpretation,
construction
and citation.

4.—(1) This Act may be cited as the Development of Inventions Act, 1954.

(2) In this Act the expression “the Corporation” means the National Research Development Corporation and the expression “the principal Act” means the Development of Inventions Act, 1948.

11 & 12 Geo. 6.
c. 60.

(3) This Act shall be construed as one with the principal Act, and that Act and this Act may be cited together as the Development of Inventions Acts, 1948 and 1954.

